

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 06/03/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	Boctor – Trust; 30-2022-01297656	
2	Donaldson – Probate; 30-2023-01323260	Motions to Compel (2) Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Responses to Inspection Demand, Set One (ROA 195) is GRANTED. Eric Donaldson is ORDERED to provide written responses, without objection, to Inspection Demands 1-15 and to produce all documents responsive to each of the requests within 30 days of this order. Petitioner’s request for sanctions in connection with the motion is GRANTED in the amount of \$1,547.50 (2.5 hours at \$595 per hour plus the \$60 motion fee). Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Further Responses to Form Interrogatories, Set One (ROA 191) is GRANTED. Eric Donaldson is ORDERED to provide further responses, without objection, to Form Interrogatory 17.1 (for responses to Requests for Admission Nos. 2, 3, 4, 5, 6, 7, 8, 9, 10, 14, & Exhibit 1) and Form Interrogatory 50.1 within 30 days of this order. Petitioner’s request for sanctions in connection with the motion is GRANTED in the amount of \$2,142.50 (3.5 hours at \$595 per hour plus the \$60 motion fee). Moving party is directed to give notice.
3	Stuck – Trust; 30-2022-01271247	
4	Zablan – Trust; 30-2019-01045409	
5	Escarsega – Elder Abuse; 30-2026-01554714	Motion to Compel

		Petitioner Bruce Martinez’s Motion to Compel Discovery Order to Disclose Location (ROA 4) is DENIED. The motion fails to provide any statutory or other legal authority authorizing the motion. The only authority cited within the motion is a reference to “Brady v. Maryland.” The court presumes this reference is to <i>Brady v. Maryland</i> (1963) 373 U.S. 83, which holds the prosecution in a criminal trial must disclose exculpatory evidence whether or not a defendant requests it. (<i>Id.</i>, at pp. 1196-1197.) The <i>Brady</i> doctrine has no application in this proceeding. Further, the court cannot determine from the motion the nature of the discovery Petitioner is seeking. The motion is DENIED. The court directs the clerk to give notice.
6	Nunes – Trust; 30-2024-01396741	Motion for Order Releasing Records Petitioner Peggy Nunes’ unopposed Motion for Order Authorizing Release of Adult Protective Protective [sic] Services and Long-Term Care Ombudsman Records (ROA 92) is DENIED. This matter arises out of the Mervin & Juanita Nunes Family Trust (Trust). In the original trust instrument, Petitioner Peggy Nunes (Petitioner) and her brother respondent Mervyn M. Nunes (Respondent) were named as beneficiaries. In the second and third amendments to the Trust, petitioner was omitted as a beneficiary. Petitioner asserts those amendments were the result of undue influence by Respondent. In April 2024, petitioner initiated this proceeding with the petition seeking an order determining the validity of the earlier Trust documents and alleging financial elder abuse. By the motion before the court this day, Petitioner seeks an order authorizing the release of records relating to her mother, trustor Juanita Nunes, from Orange County and/or Los Angeles County Adult Protective Services and the Orange County Long-Term Care Ombudsman Program for the period October 1, 2013 through December 2023. She seeks all records, including “complaints, intake reports, investigation reports, case notes, findings, communications, referrals and related documentation.” (Motion at 4:11-12.) Petitioner argues the records are directly relevant to the issue of whether her mother might have been vulnerable to undue influence during the time the trust was amended. Two days before the hearing on the motion, Petitioner submitted a supplemental declaration in support of the motion. “The general rule of motion practice . . . Is that new

	evidence is not permitted with reply papers.” (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) Accordingly, the court has not considered the supplemental declaration filed on June 1, 2026. The court is troubled by certain aspects of this motion. First, at least some of the documents Petitioner seeks are protected from production by law. Pursuant to Welfare & Institutions Code section 15633, reports of elder abuse are confidential and can be disclosed only in certain limited situations, none of which are relevant here. (It is not entirely clear from the statutory language whether the prohibition applies only to the initial reports or whether it extends to investigative notes or findings created in connection with those reports.) By this motion, Petitioner seeks “complaints” and “intake reports” for any claim of abuse made between 2013 and 2023. Accordingly, at least some of the records Petitioner seeks cannot be produced under law. Second, at least some of the documents Petitioner seeks appear to be completely irrelevant to the issues raised by this proceeding. The petition alleges the Trust was amended in December 2014 and September 2015. Petitioner, however, seeks documents for the period 2013 through December 2023. She provides neither argument nor explanation of why records for the period after September 2015 would be relevant in any way to this proceeding. Third, Petitioner’s motion does not cite any authority supporting or permitting production of the requested records. Fourth, the motion does not reflect any attempt by Petitioner to obtain the documents by any method other than this motion. There is no subpoena seeking the records. There is no declaration stating Petitioner has had any communication with the relevant entities regarding production of the records. Fifth, and most troubling to the court, the motion was not served on the relevant entities who, accordingly, have had no opportunity to state their position regarding production of their records. For the foregoing reasons, the motion is DENIED. If Respondents are directed to give notice.
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7	Li – Trust; 30-2025-01527278	Motion to Compel Petitioner Conan Li’s Motion to Compel Production of Records Pursuant to Subpoena Issued to Ascendant LLP (ROA 16) is GRANTED in part and DENIED in part as set forth below. This matter arises out of the James Chen-Min Li Irrevocable Trust dated September 8, 2022 (Trust). Petitioner Conan Li (Petitioner) asserts the trustor, James Chen-Min Li (Decedent), lacked testamentary capacity when he executed the Trust and/or the Trust was the result of undue influence and/or duress. Petitioner also asserts a claim of financial elder abuse and a Probate Code section 850 claim relating to unspecified assets. Decedent was represented by Ascendant, LLP in connection with creation of the Trust. Petitioner issued a subpoena to Ascendant, seeking records relating to creation of the trust. Ascendant responded with objections only. This motion followed. The subpoena included 12 categories of documents, some of which are somewhat redundant. Generally speaking, the subpoena seeks all documents and communications relating to Ascendant’s representation of Decedent in connection with the trust and amendments thereto. Three of the requests, Nos. 7, 11, 12 also seek documents and/or communications with persons other than Decedent. Ascendant’s written response included the following objections: vague and ambiguous, a response to the request would require preparation of compilation, premature, and burdensome. These objections are without merit. Ascendant also asserted the attorney-client privilege and attorney work product doctrines. The privilege objection is without merit as it relates to Ascendant’s representation of Decedent. “There is no privilege under this article as to a communication relevant to an issue between parties all of whom claim through a deceased client, regardless of whether the claims are by testate or intestate succession, nonprobate transfer, or inter vivos transaction.” (Evid. Code, § 957.) Further, there is no privilege for communications relevant to the intention of a deceased client with respect to conveyance of property interest or the intention of a deceased client executing a document which the lawyer is an attesting witness. (Evid. Code, §§ 959, 960.) Although the duty of confidentiality imposed by Rules of Professional Conduct, Rule 1.6 might be “broader” than the attorney-client privilege (<i>Dietz v. Meisenheimer & Herron</i> (2009) 177 Cal.App.4th 771, 7786), it does not prohibit
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		production of the requested documents in the context of this probate proceeding, particularly where there are statutory provisions specifically designed to allow the introduction of exactly the sorts of documents sought by the subpoena. The cases cited by Ascendant do not dictate otherwise. The work product objection, however, has merit. "The attorney, not the client is the exclusive holder of the work product privilege." (<i>Melendrez v. Superior Court</i> (2013) 215 Cal.App.4th 1343, 1353.) Accordingly, the motion to compel production is GRANTED as to Requests Nos. 1, 2, 3, 4, 5, 6, 8, 9, & 10. The motion to compel production is GRANTED in part and DENIED in part as to Requests Nos. 7, 11, & 12 as follows. Request No. 7 seeks all communications with anyone related to the Trust. The motion to compel production to Request No. 7 is GRANTED as it relates to communications with Decedent. To the extent there are any communications with individuals other than Decedent which may be protected by the attorney-client privilege, those documents need not be produced. Request No. 11 seeks documents related to services provided by Ascendant to Decedent or Respondent Edward Kong-Hwa Li (Respondent). The motion to compel production to Request No. 11 is GRANTED with regard to documents relating to the legal services provided to or on behalf of Decedent. To the extent there are documents relating to legal services provided to Respondent as an independent client, those documents need not be produced. Request No. 12 seeks documents related to services provided by Ascendant to Decedent, Respondent, the Trust, and the Estate. The motion to compel production to Request No. 12 is GRANTED with regard to documents relating to the legal services provided to or on behalf of Decedent. To the extent there are documents relating to legal services provided to Respondent, the Trust, or the Estate as independent clients, those documents need not be produced. If any document is withheld on the ground of attorney-client privilege with a client other than Decedent (in response to Requests Nos. 7, 11, and/or 12) or attorney work product doctrine, Ascendant must identify such document(s) on a privilege log. The privilege log must provide sufficient information for Petitioner to evaluate the merits of the claim of privilege. (CCP § 2031.240.) That information should, at a minimum, include the author, recipient(s), date, heading or re: line and other pertinent information.
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		The documents are to be produced within 30 days of this order. The court does not rule on Petitioner's evidentiary objections (ROA 33) as none of the evidence objected to was material to the court's disposition of the motion. Petitioner is to give notice.
8	Zor – Trust; 30-2025-01523808	Review Hearing re: Bond
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